



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 15TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 20TH DAY OF APRIL, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

NONE

Resolution No. 140-2021

RESOLUTION ADOPTING AN ORDINANCE ESTABLISHING GUIDELINES FOR MONETIZATION OF LEAVE CREDITS AND ITS MONITORING SYSTEM IN THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE

WHEREAS, pursuant to Civil Service Commission (CSC) Memorandum Circular No. 41 s. 1998 also known as the Omnibus Rules on Leave, officials and employees in the career and non-career service whether permanent, temporary, casual, or coterminous, who have accumulated fifteen (15) days of vacation leave credits shall be allowed to monetize a minimum of ten (10) days: Provided, that at least five (5) days is retained after monetization and provided further that a maximum of thirty (30) days may be monetized in a given year;

WHEREAS, the monetization of leave credits is being processed by an agency, subject to the provisions of CSC MC Nos. 41, s. 1998 and 16 s. 2002, and other related prevailing rules and regulations of the CSC and the Department of Budget and Management;

WHEREAS, although monetization of leave credits is governed by the rules and regulations of the Civil Service Commission and the Department of Budget and Management, there is still need for LGU Daet to establish a set of guidelines to ensure that officials and employees enjoy the privilege equally and reasonably;

WHEREAS, it is known that the leave credits being monetized are earned by the employees and it is their privilege to seek monetization, however, allocation of fund for

monetization is within personnel services, hence, prudence in the disbursement must be observed to avoid re-alignment of fund that will affect the delivery of basic services;

NOW THEREFORE, after due deliberation, on motion of Councilor William Carlo R. Avila, with Councilors Tomasito Santiago C. Turingan and Apolonio B. Panong as co-movants, seconded by Councilors Felix C. Abaño, Marlon T. Bandelaria, Judy Rose T. Gallardo, Rossano C. Valencia, Nestor F. Dalida and Pedro S. Musa;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 415-2021

AN ORDINANCE ESTABLISHING GUIDELINES FOR MONETIZATION OF LEAVE CREDITS AND ITS MONITORING SYSTEM IN THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Leave Credits Monetization Ordinance of Daet, Camarines Norte".

SECTION 2. PURPOSE. These guidelines is enacted to provide specific guidelines and step by step procedure on processing of leave monetization and monitoring system to enhance equality, transparency and accountability among officials and employees in the municipal government of Daet.

SECTION 3. SCOPE. All officials and employees of LGU Daet in the career and non-career service whether permanent, temporary, casual, or coterminous, who have accumulated fifteen (15) days of leave credits shall be allowed to monetize the allowable leave credits a minimum of ten (10) days, provided, that at least five (5) days is retained after monetization.

SECTION 4. DEFINITION OF TERMS. As used in this Ordinance, the following terms shall be construed as follows:

- a. **Commutation of leave credits** – refers to conversion of unused leave credits to their corresponding money value;
- b. **Cummulation of leave credits** – refers to incremental acquisition of unused leave credits by an official or employee;
- c. **Immediate family** – refers to the spouse, children, parents, unmarried brothers and sisters and any relative living under the same roof and dependent upon the employee for support;
- d. **Monetization** – refers to payment in advance under prescribed limits and subject to specified terms and conditions of the money value of leave credits of an employee upon his request without actually going on leave.



SECTION 5. IMPLEMENTING GUIDELINES FOR MONETIZATION OF LEAVE CREDITS. All officials and employees of LGU Daet in the career and non-career service whether permanent, temporary, casual, or coterminous, shall be provided equal opportunity to avail the monetization of leave credits subject to the following guidelines:

- A. The monetization of ten (10) days leave credits shall be allowed annually for all officials and employees not earlier than February of the current year;
- B. The monetization of more than ten (10) days leave credits up to a maximum of 50% of accrued leave credits maybe allowed for the following reasons/justifications:
 - i. Due to health reasons. Applicant must submit any of the following justifications: medical certificate from the government Doctor or his/her Physician indicating the existing medical condition, medical prescription, etc.
 - ii. Due to unforeseen circumstances brought about by force majeure. Applicant shall submit certification from Punong Barangay or Municipal Engineer in the area where the employee presently resides affirming that the house and/or immediate surroundings require renovations/repairs due to damages brought about by force majeure.
 - iii. Educational needs. Applicant shall submit the certified true copy of the matriculation form or enrolment assessment to show the need for financial assistance to meet his/her or the immediate family members' educational needs.
 - iv. Payment of mortgage and loans. Applicant shall submit any of the following: copy of loan assessment, demand letter, notification, among others.
 - v. In cases of extreme financial needs of the employee or his/her immediate family where the present sources of income are not enough to fulfill basic needs such as food, shelter and clothing. Applicant may submit the certified true copy of their payslip, subject to evaluation of HRMO and approval of the Local Chief Executive.
 - vi. Other analogous cases that may affect the basic needs of the employee and its family members if the present source of income will be diverted to such expenses, this may include repair and maintenance of personal service vehicle, minor house repair, repair of house equipment, among others. Applicant may submit the statement of account needed for the repairs signed by the technician, repairman or Municipal Engineer, subject to evaluation of HRMO and approval of the Local Chief Executive.
- C. The monetization of leave credits shall be in accordance to existing rules and regulations of Commission on Audit.



SECTION 6. EXEMPTION. Those officials or employee who has pending administrative case shall not be entitled to monetize leave credits until such time the administrative case reached its finality or the penalty thereof have already been served.

SECTION 7. PROCEDURE. Any official or employee of the LGU Daet may apply for monetization of accumulated leave credits on the following steps:

- a. Prepare letter request address to the Local Chief Executive indicating therein the purpose of monetization. In case of more than ten (10) days monetization of leave credits, justification must be attached in the letter request;
- b. Submit duly accomplished two (2) copies of Leave Application Form at the Human Resource Management Office with the letter request and applicable justification;
- c. The HR personnel receive properly filled-out application forms signed by the applicant and head of office. The HR personnel shall validate qualification requirement of the applicant for monetization of leave credits based on record at the Leave Card. Upon verification, prepares the certificate of leave credits indicating the following data:
 - Basic salary of the applicant
 - Total number of vacation and sick leave
 - Total number of vacation and sick leave available to monetize
 - Total number of vacation and sick leave applied to monetize
 - Total number of vacation and sick leave allowed to monetize
 - Constant factor based on CSC MC No. 2, s. 2016
 - Total Money Value
- d. The Human Resource Management Officer shall affix his/her signature in the Leave Application Form and Certification, prepares the disbursement document and submits at the Local Chief Executive for final approval with the attached requirements, to wit:
 - i. Approved letter request;
 - ii. Duly accomplished Leave Form;
 - iii. Certification of Leave Credits;
 - iv. Certified true copy of employee's Leave Card indicating the deducted leave credits;
 - v. If more than 10 days monetization of leave credits, justification to the monetization.
- e. The HRMO shall update the employee's Leave Card for monitoring and accountability.

SECTION 8. MONITORING SYSTEM. For purposes of transparency and accountability, the Committee on Leave Credits is hereby created with the following composition:



Chairperson: Municipal Administrator
Co-Chairperson: Human Resource Management Officer
Members: Municipal Accountant
DAMEA President
1 Representative from 1st Level Rank and File Employee
1 Representative from 2nd Level Rank and File Employee

SECTION 9. DUTIES AND FUNCTIONS OF THE COMMITTEE.

- a. Act as Grievance Committee that shall act and decide on any grievances arises in the implementation of this Ordinance;
- b. Convene quarterly for updating and monitoring of employees Leave Card against disbursement;
- c. Ensure quarterly posting of transactions on monetization at the HRMO or LGU Transparency Board, to wit:

Name of employee	Date granted monetization	No. of days granted	Leave Credits Balance on Leave Card

- d. Disseminate information to employees on policies relative to leave privileges and monetization;
- e. Recommend to the Local Chief Executive and Sanggunian policies on leave privileges;

SECTION 10. FUNDING REQUIREMENTS. The amount necessary for the monetization of leave credits shall be allocated annually in the LGU Budget, subject to guidelines prescribed by the Commission on Audit.

SECTION 11. PENALTY. Any violation found in the management and administration of monetization of leave credits, the official or employee involved shall be administratively held liable.

SECTION 12. REPEALING CLAUSE. All ordinances, executive orders and rules and regulations inconsistent and contradictory with the provision of this Ordinance are hereby repealed, amended or modified accordingly.

SECTION 13. SEPARABILITY CLAUSE. The provisions of this Ordinance are hereby declared separable. In the event that one or more provisions are held illegal or unconstitutional, the validity of the other provisions shall not be affected.

SECTION 14. EFFECTIVITY. This Ordinance shall take effect upon approval.



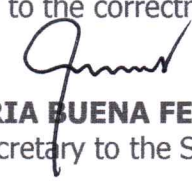
ENACTED.

RESOLVED FURTHER, to furnish copies hereof, the Mayor's Office, the Municipal Administrator, the Human Resource Management Office, the Daet Municipal Employees Association (DAMEA), the Municipal Budget Office, the Municipal Accounting Office, the Municipal Treasurer's Office, the Sangguniang Panlalawigan, the Civil Service Commission and all others concerned for their information and appropriate action;

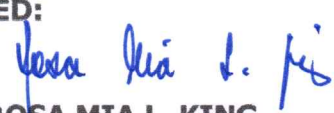
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


COUN. WILLIAM CARLO R. AVILA
Proponent


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: APR 23 2021